

STATE OF NEW YORK

4408--A

Cal. No. 261

2025-2026 Regular Sessions

IN SENATE

February 4, 2025

Introduced by Sen. MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- recommitted to the Committee on Environmental Conservation in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the environmental conservation law, in relation to agreements and easements related to renewable energy interconnection across reforestation areas

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The environmental conservation law is amended by adding a new section 9-0508 to read as follows:

§ 9-0508. Agreements and easements related to renewable energy interconnection.

Notwithstanding any provisions of article seven of the public lands law to the contrary, the department may, in any lands acquired as reforestation areas by the state in accordance with section 9-0501 of this title, enter into agreements, including but not limited to leases, or easements, for the sole purpose of aiding in the interconnection of renewable energy installations located outside such lands and the transmission and distribution of electricity therefrom. Such interconnection rights shall not interfere with the operation of such reforestation areas for the purposes for which they were acquired and as defined in section three of article fourteen of the New York state constitution. Any agreement made and entered into pursuant to this section shall be recorded in the office of general services and be made available to the public on the official website of such office.

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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